

SETTING THE AGENDA
CM Himanta Biswa Sarma addressing the media in Guwahati, June 20

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forgotten 1950 law, Sarma fast-tracks deportations, bypassing legal safeguards to project his tough-on-immigration image

The BJP revives the spectre of "illegal Bangladeshis" altering Assam's identity, using pushbacks to ignite insecurities among indigenous voters

Sarma signals a renewed push to reclaim land for indigenous communities by intensifying the crackdown on alleged encroachments by illegal immigrants

Alleged beef provocations near temples post-Eid, and arms licences to "original inhabitants" are being used to amplify a siege mentality and frame immigrant Muslims as internal threats

grounds that his name appeared in the draft NRC. The court ruled that "inclusion of the name of the appellant in the draft NRC would have no bearing on the order passed by the Tribunal, affirmed by the [Gauhati] High Court, declaring the appellant a foreigner". In other words, being on the NRC list provided no protection against being declared a foreigner by a tribunal.

This dual-track system has unleashed a Kafkaesque nightmare in Assam where even legal reprieve offers no protection. In a recent case, one Hachinur, who was out on bail and regularly reporting to the police, was detained again, without warning, and without his family being informed, despite his appeal pending before the high court. The court later termed the detention illegal, ordering his immediate release and chastising state authorities for violating due process.

Having sidelined the NRC, Sarma has turned to more expedient methods. His government's most controversial innovation has been the revival of the Immigrants (Expulsion from Assam) Act (IEAA), 1950, that had largely fallen into disuse. The Act grants the central government and, by extension, district commissioners acting on its behalf, sweeping powers to expel "any person or class of persons who have come into Assam from outside India" if their presence is deemed "detrimental to the interests of the general public of India or any Scheduled Tribe in Assam".

What makes this law so attractive to Sarma's government is that it bypasses the elaborate judicial machinery that has come up around immigration cases. Under the current system, suspected foreigners are typically referred to FTs. These proceedings can drag on for years, and many of those declared foreigners subsequently appeal to higher